Water Sustainability Act Definitions:

1 (1)In this Act:

"agricultural land reserve" has the same meaning as in the *Agricultural Land Commission Act*;

"alter", in relation to a well, means

(a)undertake a structural change to a well related to the well's depth, diameter or screen assembly,

(b)install a surface seal in a well that does not have one, or

(c)hydrofracture a well to enhance groundwater supply from the well;

"appeal board" means the Environmental Appeal Board continued under section 93 of the *Environmental Management Act*;

"applicant" means a person applying for

(a)an authorization, an amendment to an authorization, a transfer of the appurtenancy of an authorization or an apportionment of the rights under a licence,

(b)a change approval, an amendment to a change approval or the transfer of the appurtenancy of a change approval,

(c)a drilling authorization, an amendment to a drilling authorization or the transfer of the appurtenancy of a drilling authorization,

(d)the transfer of an application for an authorization, or

(e)the abandonment of all or some of the person's rights under an authorization;

"aquatic ecosystem", in relation to a stream, means the natural environment of the stream, including

(a)the stream channel, the vegetation in the stream and the water in the stream, and

(b)fish, wildlife and other living organisms insofar as their life processes

(i)are carried out in the stream, and

(ii)depend on the natural environment of the stream;

"aquifer" means

(a)a geological formation,

(b)a group of geological formations, or

(c)a part of one or more geological formations

that is groundwater bearing and capable of storing, transmitting and yielding groundwater;

"authorization", except in references to drilling authorization, means a licence or use approval;

"beneficial use",

(a)in relation to a use of water under an authorization, means using the water

(i)as efficiently as practicable,

(ii)in accordance with any applicable regulations, and

(iii)for the water use purposes, in the manner and in the period or at the times, authorized by the authorization, and

(b)in relation to a use of water other than under an authorization, means using the water for a water use purpose

(i)as efficiently as practicable,

(ii)in accordance with any applicable regulations, and

(iii)in accordance with the provisions of this Act or the regulations that apply in relation to the use of water without an authorization;

"beneficial use declaration" means a declaration described in section 30 (2) *[beneficial use]*;

"change approval" means an approval, to make changes in and about a stream, issued under section 11 (1) *[changes in and about a stream]* or a similar approval issued under a former Act;

"changes in and about a stream" means

(a)any modification to the nature of a stream, including any modification to the land, vegetation and natural environment of a stream or the flow of water in a stream, or

(b)any activity or construction within a stream channel that has or may have an impact on a stream or a stream channel;

"compliance agreement" means an agreement described in section 102 (1), (2) and (3) *[compliance agreements]*;

"comptroller" means the person designated as the Comptroller of Water Rights under section 114 (1) *[administration]*;

"conditional licence" means a licence, issued under this or a former Act, that authorizes the licensee to construct works, or divert and use water, before the issue of a final licence;

"construct", in relation to a well, means

(a)drill the well,

(b)alter the well,

(c)develop the well,

(d)repair or maintain the well,

(e)inject water or any other substance into the well, or

(f)construct, install, replace, repair, alter or remove works that relate to groundwater or the well;

"critical environmental flow threshold", in relation to the flow of water in a stream, means the volume of water flow below which significant or irreversible harm to the aquatic ecosystem of the stream is likely to occur;

"Crown land" means land, whether or not it is covered by water, that is vested in the government;

"date of first use", in relation to a use of groundwater from an aquifer for a water use purpose, means the date from which the comptroller, a water manager or an engineer is satisfied in accordance with the regulations that groundwater from the aquifer has been used

(a)regularly and beneficially on an ongoing basis,

(b)for the water use purpose, and

(c)on land, or for a mine or undertaking, to which, if the water use purpose were licensed, the licence would be appurtenant;

"deactivate", in relation to works, means take the works out of service temporarily;

"debris" means

(a)clay, silt, rock or similar material, or

(b)any material, natural or otherwise, from construction or demolition;

"decision maker", in relation to a decision under this Act, means

(a)the person authorized to make the decision, and

(b)if more than one person is authorized to make that decision, the person who is making or has made that decision,

whether on application or on the person's own initiative;

"decommission", in relation to works, means take the works out of service permanently;

"dedicated agricultural water" means water that is dedicated under section 82 (1) *[plan regulations — dedicated agricultural water]* for qualifying agricultural use on qualifying agricultural land;

"development district" has the same meaning as "district" in section 58 *[definitions]* of the *Drainage, Ditch and Dike Act*;

"divert" means,

(a)in relation to water in a stream, cause the water to leave the stream channel, whether to cause the water to flow into another stream channel or a reservoir or otherwise, and

(b)in relation to water in an aquifer, cause the water to leave the aquifer,

and includes extract or impound water from a stream or an aquifer;

"drill", in relation to a well, means make the well by drilling, boring, driving, jetting or excavating;

"drilling authorization" means an authorization issued under section 62 *[drilling authorizations]*;

"drinking water officer" has the same meaning as in section 1 *[definitions]* of the *Drinking Water Protection Act*;

"engineer", except in the definition of "professional" in section 48 *[definitions for Division 3 of Part 3]*, means a person designated as an engineer under section 114 (5) *[administration]*;

"environmental flow needs", in relation to a stream, means the volume and timing of water flow required for the proper functioning of the aquatic ecosystem of the stream;

"farm use", subject to the regulations, has the same meaning as in section 1 (1) *[definitions]* of the *Agricultural Land Commission Act*;

"final licence" means a licence, issued under this or a former Act, that authorizes the diversion and use of water but does not authorize the construction of works;

"former Act" means any Act containing provisions respecting the diversion and use of water that came into force before the date this definition comes into force;

"geotechnical well" means a well, other than a monitoring well or a well that is used to divert groundwater, that is drilled for the purpose of obtaining geotechnical, hydrological, hydrochemical or stratigraphical information;

"government corporation" has the same meaning as in section 1 *[definitions]* of the *Financial Administration Act*;

"government water record" means information, respecting the quality or quantity of water in a stream or aquifer, a person's use of water from a stream or aquifer, or works, that is in the records of

(a)the minister,

(b)the provincial health officer appointed under the *Public Health Act*,

(c)a regional health board designated under the *Health Authorities Act*,

(d)a prescribed minister, or

(e)a prescribed government corporation;

"groundwater" means water naturally occurring below the surface of the ground;

"improvement district" means, as the context requires,

(a)the corporation into which the residents of an area are incorporated as an improvement district under the *Local Government Act* or a former Act, or

(b)the geographic area of the improvement district corporation;

"licence" means a conditional licence or a final licence;

"local trust committee" has the same meaning as in section 1 *[definitions]* of the *Islands Trust Act*;

"mine" includes a placer or mineral claim or land held or occupied for the purpose of winning a mineral from the claim or land, whether held in fee simple or by virtue of a record, registration, lease or licence;

"mineral" means

(a)an ore of metal or a natural substance capable of being mined

(i)that is in the place or position in which the ore or substance was originally formed or deposited or is in talus rock, and includes

(A)rock and other materials from mine tailings, dumps and previously mined deposits of minerals, and

(B)dimension stone, or

(ii)that is either loose, or found in fragmentary or broken rock that is not talus rock and occurs in loose earth, gravel and sand, and includes rock or other materials from placer mine tailings, dumps and previously mined deposits of placer minerals, or

(b)coal,

but does not include petroleum or natural gas;

"monitoring well" means a well that

(a)is used or intended to be used for the purpose of monitoring, observing, testing, measuring or assessing

(i)the level, quantity or quality of groundwater, or

(ii)subsurface conditions, including geophysical conditions, and

(b)is not used or intended to be used for the purpose of

(i)exploring for or diverting groundwater for a water use purpose, or

(ii)injecting water or any other substance into groundwater on an ongoing basis;

"natural boundary" has the same meaning as in section 1 *[definitions]* of the *Land Act*;

"officer" means

(a)a person designated as an officer under section 114 (6) *[administration]* of this Act, or

(b)a conservation officer as defined in section 1 (1) *[definitions]* of the *Environmental Management Act*;

"order" includes a decision or direction, whether or not the decision or direction is given in writing, but does not include a request;

"owner", in relation to land, a mine or an undertaking in British Columbia, means a person who

(a)is entitled to possession of the land, mine or undertaking, or

(b)has a substantial interest in the land, mine or undertaking;

"permit" means a permit issued under section 24 *[permits over Crown land]* or an authority, issued under a former Act, to flood, or to construct, maintain or operate works on, Crown land;

"personal information" has the same meaning as in Schedule 1 of the *Freedom of Information and Protection of Privacy Act*;

"plan area" means the area designated under section 65 *[order designating area for planning process]* for the development of a water sustainability plan;

"precedence", in relation to rights to divert and use water, means the precedence of those rights in accordance with section 22 *[precedence of rights]*;

"private dwelling" means a structure, or a part of a structure, that is occupied as a private residence;

"production casing", in relation to a well, means the innermost pipe, tubing or other material installed in the well to support the sides of the well, but does not include a well liner or surface casing;

"prospecting for a mineral" means searching for a mineral

(a)using hand-held tools in a manner that does not involve mechanical disturbance of the surface, or

(b)in a prescribed manner;

"protected fish population", in relation to a sensitive stream, means the population of fish in relation to which the stream has been designated as a sensitive stream;

"public officer" includes a member of the executive council, a public service employee and any other person, other than a judicial officer, who, under an enactment, has authority to make a decision affecting the rights of another person;

"public personal information" means any of the following:

(a)the name, address, telephone number and other personal information of a subscriber that appears in a telephone directory, in either printed or electronic form, or is available through a directory assistance service, if

(i)the directory or the directory assistance service is available to the public, and

(ii)the subscriber is permitted to refuse to have the subscriber's personal information included in the directory or made available by the directory assistance service;

(b)personal information that appears in a professional or business directory, listing or notice that is available to the public, if the individual is permitted to refuse to have the individual's personal information included in the directory, listing or notice;

(c)personal information appearing in a registry to which the public has lawful access, if the personal information is collected under the authority of an enactment, the laws of the government of Canada or a province of Canada, or the bylaws of a municipality or other similar local authority in Canada;

(d)personal information that appears in a printed or electronic publication that is available to the public, including a magazine, book or newspaper in printed or electronic form, unless

(i)a court has prohibited the publication or continued publication of the personal information by the source, or

(ii)the Information and Privacy Commissioner has made an order stating that the information was published contrary to the *Personal Information Protection Act*;

"public service employee" has the same meaning as "employee" in section 1 *[definitions]* of the *Public Service Act*;

"qualifying agricultural land" means all or the part of a plan area, to which a regulation under section 82 (1) *[plan regulations — dedicated agricultural water]* applies, that is

(a)in the agricultural land reserve, or

(b)zoned to permit the use of the land for farm use under

(i)a municipal or regional district bylaw under Divisions 5 and 12 to 14 of Part 14 *[Planning and Land Use Management]* of the *Local Government Act* or Part XXVII *[Planning and Development]* of the *Vancouver Charter*, or

(ii)a bylaw made by a local trust committee under section 29 *[land use and subdivision regulation]* of the *Islands Trust Act*;

"qualifying agricultural use" means the use of water for

(a)an irrigation purpose,

(b)a prescribed industrial purpose, or

(c)a storage purpose associated with a purpose described in paragraph (a) or (b);

"recorded water" means water the right to the diversion or use of which is held under an authorization or another enactment;

"registrar", in relation to land, means the registrar appointed under the *Land Title Act* for the land title district in which the land is located;

"sensitive stream" means a stream designated by regulation as a sensitive stream;

"stream" means

(a)a natural watercourse, including a natural glacier course, or a natural body of water, whether or not the stream channel of the stream has been modified, or

(b)a natural source of water supply,

including, without limitation, a lake, pond, river, creek, spring, ravine, gulch, wetland or glacier, whether or not usually containing water, including ice, but does not include an aquifer;

"stream channel", in relation to a stream, means the bed of the stream and the banks of the stream, both above and below the natural boundary and whether or not the channel has been modified, and includes side channels of the stream;

"take action",

(a)in relation to water, includes allow, start, stop, restrict or prohibit the diversion, use, including storage, carriage or distribution of the water, and

(b)in relation to works, includes allow, start, stop, restrict, shut or prohibit their construction or operation;

"undertaking" means a project, including all land and other property acquired or to be acquired in connection with the project, and the general scheme for the acquisition, maintenance and operation of the works for the project, for

(a)the diversion, carriage, use and sale of water, or

(b)the sale of power produced from water,

the water use purpose of which water is referred to in an application or authorization;

"unrecorded water" means water in a stream or an aquifer that is not recorded water;

"use approval" means an approval issued under section 10 *[use approvals]* or written approval, other than a licence, to divert and use water, given under a former Act;

"water district" means a water district prescribed by regulation;

"water manager" means a person designated under section 114 (3) *[administration]* as a water manager;

"water objective" means an objective established by regulation under section 43 *[water objectives]*;

"water source well" has the same meaning as in section 1 *[definitions]* of the *Petroleum and Natural Gas Act*;

"water sustainability plan" means a water sustainability plan accepted under section 75 (1) or (3) *[acceptance of plan]*;

"water use purpose" means a purpose defined in section 2 *[water use purposes]* or a subset of a purpose defined in section 2;

"water users' community" has the same meaning as in section 1 (1) *[definitions]* of the *Water Users' Communities Act*;

"well" means an artificial opening in the ground made for the purpose of

(a)exploring for or diverting groundwater,

(b)testing or measuring groundwater,

(c)recharging or dewatering an aquifer,

(d)groundwater remediation,

(e)use as a monitoring well,

(f)use as a closed-loop geoexchange well, or

(g)use as a geotechnical well,

but does not include

(h)an artificial opening, other than a water source well, to which the *Geothermal Resources Act* or the *Energy Resource Activities Act* applies, or

(i)an artificial opening of a prescribed class, made for a prescribed purpose or in prescribed circumstances;

"well cap" means a secure cap or lid that prevents vermin, contaminants, debris or other foreign objects or substances from entering the interior of the production casing, and includes a sanitary well seal;

"well cover" means a secure cover, lid or structure that prevents vermin, contaminants, debris or other foreign objects or substances from entering the well;

"well pump" means a pump that

(a)is at or in a well, and

(b)is used or intended to be used for the purposes of

(i)diverting groundwater from a well,

(ii)adding water to a well to recharge the well or an aquifer, or

(iii)dewatering an aquifer;

"wellhead" means

(a)the physical structure, facility, well cover, adapter or device

(i)that is at the top of, or at the side and near the top of, a well, and

(ii)from or through which groundwater flows or is pumped from the well, and

(b)any casing, well cap, valve, grout, liner, seal, vent or drain relating to the well,

but does not include a well pump or a pump house;

"wetland" means a swamp, marsh, fen or prescribed feature;

"wildlife" means wildlife as defined in paragraph (a) of the definition of "wildlife" in section 1 (1) *[definitions and interpretation]* of the *Wildlife Act*;

"works" means

(a)anything that can be or is used for

(i)diverting, storing, measuring, conserving, conveying, retarding the flow of, confining or using water,

(ii)producing, measuring, transmitting or using electricity,

(iii)collecting, conveying or disposing of sewage or garbage, or

(iv)preventing or extinguishing fires,

(b)booms and piles placed in a stream,

(c)obstructions placed in or removed from streams or the banks or beds of streams,

(d)changes in and about a stream,

(e)access roads to any of the works referred to in paragraphs (a) to (d) or (f) (i), and

(f)wells and works related to wells, including

(i)wellheads,

(ii)anything that can be or is used for injecting or otherwise adding water or any other substance to a well,

(iii)anything that can be or is used for constructing, deactivating or decommissioning a well,

(iv)anything that can be or is used for exploring for, testing, diverting or monitoring groundwater,

(v)anything that can be or is used for disinfecting a well,

(vi)an injection system attached to a work that is used for conveying, from a well, groundwater that will be used for applying fertilizers or pesticides, and

(vii)anything that can be or is used in relation to a monitoring well or a well made for the purpose of groundwater remediation.

(2)A reference in this Act to regulations or to anything as prescribed is a reference to regulations of the Lieutenant Governor in Council unless specifically provided otherwise in the applicable provision.

(3)An authorization, change approval, permit or drilling authorization issued in substitution for

(a)an original authorization, change approval, permit or drilling authorization, or

(b)an original authorization, change approval, permit or drilling authorization as modified,

is conclusively deemed to be the original authorization, change approval, permit or drilling authorization as modified.

(4)A reference in this Act

(a)to an aquifer includes part of an aquifer, and

(b)to a stream includes part of a stream.

A public link containing the definitions can be found here:

https://www2.gov.bc.ca/assets/gov/environment/air-land-water/water/water-licensing-and-rights/water_use_purpose_defns.pdf